

Legal and Copyright Frameworks for Educational AI and Multimedia Assets: A Cross-Jurisdictional Analysis of the Kings' College Galway Initiative

The intersection of artificial intelligence, educational multimedia distribution, and transnational intellectual property law presents an exceptionally complex jurisprudential landscape. The development of the "Kings' College Galway" platform—a not-for-profit educational artificial intelligence company and charitable initiative operating across the Republic of Ireland, the United Kingdom (specifically Belfast, Liverpool, and London), and the Isle of Man—requires navigating three distinct, albeit historically intertwined, copyright regimes. The initiative is centered around an educational Massively Multiplayer Online (MMO) game designed to align with the pedagogical requirements of the General Certificate of Secondary Education (GCSE), Advanced Level (A-level), and the Irish national syllabi. The platform relies on the ingestion, computational analysis, and display of varied media to function as an educational asset focusing on minority languages.

These target media span a vast spectrum of copyright protection and commercial viability. On one end of the spectrum is highly commercialized, active intellectual property, including Jonathan Hickman's Marvel comics, the animated series *Avatar: The Last Airbender*, Nintendo's *The Legend of Zelda*, Supergiant Games' *Hades*, and Clockwork Labs' *BitCraft Online*. This category also includes contemporary literary analysis, specifically Tor Books' *Origins of the Wheel of Time* by Michael Livingston. On the opposite end of the spectrum lies highly endangered, legacy educational material, epitomized by the 1974 'Irish Course Handbook' produced by Gael Linn and the Linguaphone Institute, which carries a strict "all rights reserved" notice.¹

This report provides an exhaustive, tiered legal analysis of the copyright implications of utilizing these materials. It contrasts modern computational methodologies—such as Vision-Language Model (VLM) processing, Text and Data Mining (TDM), and public dataset distribution—against statutory exceptions designed to protect education. Crucially, the analysis integrates the operational persona of the platform's developer: an individual acting concurrently as a registered teacher and a postgraduate student. Furthermore, it contrasts the rigid application of commercial copyright law against the socio-legal imperative of "cultural ecology" and minority language preservation, evaluating the risk profile of orphan works within an overarching moral framework.

The Pedagogical Context: Syllabi, Instruction, and the Practitioner's Privilege

To accurately assess the legal risk profile of the Kings' College Galway MMO, the legal standing of the platform's architect must be established. Copyright law does not apply uniformly to all actors; it provides specific, statutory safe harbors for individuals engaged in formal education and academic research. The developer's dual status as a registered teacher and a postgraduate student fundamentally alters the legal calculus of media ingestion and distribution.

As a registered teacher, the developer acts as a conduit for formal instruction. The alignment of the MMO platform with established syllabi (GCSE, A-level, and the Irish curriculum) is legally significant. Under copyright jurisprudence in the UK, Ireland, and the Isle of Man, acts undertaken for the purposes of "instruction or examination" receive specialized exemptions from the exclusive rights of the copyright holder. The integration of media into a game environment designed to prepare students for formal state examinations allows the platform to be classified as a Virtual Learning Environment (VLE). VLEs operate under a protected legal paradigm, provided access is strictly gated to enrolled students and the educational establishment is operating on a not-for-profit basis.³

Concurrently, the developer's status as a postgraduate student invokes a parallel set of statutory protections centered around "research and private study." The development of machine learning models for minority language acquisition constitutes advanced computational research. Therefore, the ingestion and processing of data required to train these artificial intelligence models can be shielded under non-commercial research exceptions, provided the data is not subsequently commercialized or distributed in a manner that substitutes the primary market of the original rights holders.⁵ The synthesis of these dual roles means that the Kings' College Galway platform operates within the strongest possible nexus of educational fair dealing.

The Tri-Jurisdictional Copyright Landscape

The platform spans three distinct legal territories: the Republic of Ireland (an independent European Union member state), the United Kingdom (a post-Brexit sovereign state comprising Great Britain and Northern Ireland, with operations in Belfast, Liverpool, and London), and the Isle of Man (an internally self-governing Crown Dependency). While all three jurisdictions share common law roots, their approaches to digital copyright, text and data mining, and educational exceptions have diverged in recent years.

The Republic of Ireland: Statutory Exceptions and the Digital Single Market

In the Republic of Ireland, intellectual property is primarily governed by the Copyright and Related Rights Act 2000 (CRRRA), which was substantially modernized by the Copyright and Other Intellectual Property Law Provisions Act 2019.³ Unlike the United States, which relies on the broad, constitutionally derived doctrine of "Fair Use," Ireland utilizes specific statutory "fair dealing" provisions that balance the limited monopoly of the copyright owner with the public interest.³

The 2019 amendments specifically modernized the CRRRA to accommodate digital learning

environments, making it highly favorable for the Kings' College Galway MMO. Section 53 of the Act permits acts done for the purposes of instruction or examination, explicitly allowing educational establishments to share copyrighted works with enrolled students via a VLE without seeking prior authorization from publishers, provided certain limits and attribution requirements are met.³ Section 57 permits reprographic copying by educational establishments, establishing a legal mechanism for the digital reproduction of out-of-print texts.³

Crucially, Ireland has implemented the European Union Directive on Copyright in the Digital Single Market (CDSM) via S.I. No. 567/2021.⁸ This implementation introduced vital Text and Data Mining (TDM) exceptions into Irish law. Section 53A of the CRRA permits individuals who have lawful access to a work to make copies for the purpose of computational analysis for the sole purpose of non-commercial research, provided it is accompanied by sufficient acknowledgement.⁹ Section 53B extends TDM capabilities to commercial purposes but introduces a mechanism allowing rights holders to expressly opt-out in a machine-readable format.¹⁰ Given the not-for-profit structure of the Kings' College Galway initiative, the platform benefits entirely from the unrestricted non-commercial protections of Section 53A.

The United Kingdom: The CDPA and the Text and Data Mining Debate

In the United Kingdom, encompassing the operations in Belfast, Liverpool, and London, copyright is governed by the Copyright, Designs and Patents Act 1988 (CDPA), as amended by the Copyright and Rights in Performances (Research, Education, Libraries and Archives) Regulations 2014.¹²

The UK recognizes fair dealing for specific purposes, including non-commercial research, private study, criticism, review, and quotation.⁵ Section 32 of the CDPA specifically permits fair dealing for the sole purpose of "illustration for instruction." This section ensures that using copyrighted material for educational purposes does not infringe copyright provided the dealing is for a non-commercial purpose, is conducted by a person giving or receiving instruction (including setting examination questions), and is accompanied by a sufficient acknowledgement.⁴

Regarding artificial intelligence and machine learning, the UK currently operates under Section 29A of the CDPA, which permits the copying of works for text and data analysis strictly for the sole purpose of non-commercial research, provided the researcher has lawful access to the source material.¹⁶ While the UK government recently explored introducing a broad exception for commercial TDM to foster artificial intelligence innovation, aggressive pushback from the creative industries led the House of Lords Communications and Digital Committee and the government to formally abandon the proposal.¹⁸ Consequently, the UK framework restricts AI training on copyrighted materials purely to non-commercial research, reinforcing the necessity of maintaining the platform's not-for-profit charitable status.

The Isle of Man: Crown Dependency Adaptations

The Isle of Man is not a part of the United Kingdom, nor is it a member of the European Union; it

is a self-governing Crown Dependency with its own parliament, Tynwald.²³ Its copyright law is codified in the Copyright Act 1991, which is heavily derived from the UK's CDPA 1988.²⁴ The Isle of Man applies fair dealing exceptions for the purposes of research, private study, criticism, and review.⁶

The 1991 Act has undergone a continuous modernization program, including the Copyright etc. (Amendment) Act 2014, to ensure compatibility with European and UK developments.²⁷ While the Isle of Man has historically mirrored the UK in expanding educational exceptions, any artificial intelligence platform operating there must adhere to the jurisdictional specifics of the 1991 Act. For instance, the duration of copyright in sound recordings was historically fifty years under the original 1991 Act; however, subsequent regulations extended this duration to seventy years from the end of the calendar year in which the recording was made or published, bringing it into alignment with broader European directives.²⁶

Jurisdictional Framework	Primary Copyright Statute	Instruction/VL E Exception	Text and Data Mining (TDM) Exception	Contract Override Protections
Republic of Ireland	Copyright and Related Rights Act 2000 (amended 2019)	Section 53 (Instruction/Examination)	Section 53A (Non-Commercial Research) & Section 53B (Commercial with Opt-Out)	Highly Robust (General statutory protection)
United Kingdom	Copyright, Designs and Patents Act 1988 (amended 2014)	Section 32 (Illustration for Instruction)	Section 29A (Non-Commercial Research Only)	Specific to Sections 29A and 32
Isle of Man	Copyright Act 1991 (amended 2014)	Mirrors UK Fair Dealing for Instruction	Mirrors UK Non-Commercial Exemption	Specified in modernizing amendments

Contractual Overrides and the Voiding of "All Rights Reserved" Clauses

A central impediment in developing educational artificial intelligence assets is the presence of restrictive licensing terms, End User License Agreements (EULAs), or explicit "All Rights

Reserved" notices printed on historical media. The 1974 'Irish Course Handbook' produced by Gael Linn and Linguaphone serves as a primary example, as it contains a strict assertion that no part of the publication or recorded material may be reproduced, stored in a retrieval system, or transmitted in any form without prior permission.²

However, modern copyright jurisprudence across the target jurisdictions has increasingly recognized that statutory exceptions designed for public policy objectives—such as non-commercial research, text and data mining, and education—cannot be unilaterally nullified by private contracts imposed by publishers.

In the United Kingdom, Section 29A(5) of the CDPA explicitly states: "To the extent that a term of a contract purports to prevent or restrict the making of a copy which, by virtue of this section, would not infringe copyright, that term is unenforceable".¹⁶ Similar contract override clauses apply to Section 32 concerning illustration for instruction.³² This ensures that digital rights management or contractual terms cannot circumvent the fundamental rights of researchers and educators.

Ireland has implemented some of the most robust contract override protections globally. The CRRA 2000 prevents the enforcement of contractual provisions restricting activities permitted by a wide range of exceptions, including fair dealing, text and data mining, and specific exceptions for educational establishments, libraries, and archives.³³

Therefore, from the perspective of the Kings' College Galway initiative, the strict "All Rights Reserved" notice printed on the 1974 Gael Linn handbook is legally void and unenforceable in the context of non-commercial computational analysis or when utilizing limited extracts for formal instruction within a VLE. The statutory rights granted to the registered teacher and postgraduate student supersede the historical contractual assertions of the publisher.

Categorization and Analysis of Target Media

The legal risk profile of the platform depends entirely on the nature of the media being processed and integrated. The media outlined in the initiative's parameters span varied levels of protection, economic viability, and artistic format, requiring them to be segmented into distinct legal categories.

Active Commercial Intellectual Property

This category represents highly protected, actively monitored, and heavily commercialized assets. It includes Jonathan Hickman's era of Marvel comics, the animated series Avatar: The Last Airbender, Nintendo's The Legend of Zelda, and Supergiant Games' Hades. The rights holders for these properties enforce their reproduction and derivative works rights aggressively. There is zero tolerance for unauthorized activities that could serve as a commercial market substitution. While the underlying ideas within these works are free to use, any reproduction of the specific artistic expression, character designs, or narrative prose carries immense litigation risk if distributed outside a strictly controlled fair dealing environment.

Bifurcated Open-Source Media

The inclusion of BitCraft Online presents a unique bifurcated legal scenario. Developed by Clockwork Labs, BitCraft is a community sandbox MMORPG that has initiated an open-source rollout. The server-side code, built on SpacetimeDB, is open-sourced under the permissive Apache License, Version 2.0, allowing for public inspection, experimentation, and modification.³⁶ However, Clockwork Labs explicitly retains strict proprietary copyright over all client-side assets, including 3D models, art, proprietary shaders, and tooling.³⁸ Consequently, the platform developer may freely analyze and integrate the BitCraft server architecture into the Kings' College Galway MMO, but any ingestion or reproduction of the visual client assets is subject to the same strict restrictions as active commercial IP.

Mythological and Literary Analysis

The incorporation of Tor Books' *Origins of the Wheel of Time* by Michael Livingston requires an understanding of the Idea-Expression Dichotomy. While the literary expression—the specific sentences and paragraphs written by Livingston—is protected by copyright³⁹, the underlying factual analysis is not. Livingston's book traces Robert Jordan's inspirations, mapping characters and lore to Irish and Celtic mythologies, as well as to Robert Graves' theoretical work, *The White Goddess*.⁴⁰ For example, Livingston reveals that the character Semirhage is derived from the Irish goddess Boann and the Babylonian queen Semiramis, and identifies the heavy influence of the Irish version of the Celtic Otherworld myth.⁴⁰ These mappings are historical, mythological, and literary facts. Copyright law does not protect facts or ideas; therefore, the Kings' College Galway platform may freely extract and utilize these mythological connections and thematic analyses without infringing the copyright of the Tor publication.

Legacy Educational Artifacts

The 1974 'Irish Course Handbook' and accompanying audio cassette tapes compiled by Gael Linn and the Linguaphone Institute represent a legacy educational artifact focusing on a highly endangered minority language.¹ The work possesses a non-commercial market profile, as it has been out of print for decades. Regarding the text, it likely qualifies as an "orphan work" if the specific rights holders cannot be located following a diligent search.³ However, the audio components are subject to separate protections. Under both the UK CDPA and the Isle of Man Copyright Act 1991 (as amended in 2013), the duration of copyright in a sound recording is seventy years from the end of the calendar year in which it was made or first published.²⁶ Thus, the 1974 Linguaphone audio recordings remain under statutory copyright protection until the end of 2044. Despite this enduring protection, the non-commercial nature of the work drastically lowers the practical risk of enforcement, shifting the analysis toward exceptions for preservation and cultural ecology.

Media Category	Target Media Examples	Primary Copyright Characteristics & Constraints

Active Commercial IP	Marvel Comics, Avatar, The Legend of Zelda, Hades	Highly protected; aggressive enforcement; zero tolerance for market substitution. Protection covers specific artistic expression and narrative.
Bifurcated Open-Source	BitCraft Online (Clockwork Labs)	Server code (SpacetimeDB) is Apache 2.0 open-source. Client assets (art, shaders) remain strictly proprietary.
Mythological Analysis	<i>Origins of the Wheel of Time</i> (Livingston)	Text is copyrighted; the underlying mythological facts, mappings, and thematic correlations are uncopyrightable ideas.
Legacy Artifacts	1974 'Irish Course Handbook' (Gael Linn)	Out-of-print minority language resource. Text may be an orphan work. Sound recordings are protected for 70 years (until 2044).

Tiered Legal Analysis of Artificial Intelligence and Multimedia Integration

The technological operations required to build the Kings' College Galway platform involve varying degrees of data manipulation, storage, and dissemination. The following analysis structures the proposed computational acts into five distinct tiers, escalating in legal complexity and risk across the three jurisdictions.

Tier 1: Using a Vision-Language Model (VLM) to Describe Media

Action: Feeding images from active IP (e.g., a screenshot of Hades, a panel of a Jonathan Hickman Marvel comic, or a frame of Avatar) into a Vision-Language Model to generate a descriptive text output.

Legal Analysis: The operation of a VLM inherently requires the ingestion of visual media. When an image is passed to a model, the computer must translate the visual data into an array of pixels, creating a temporary, transient copy within the system's Random Access Memory (RAM)

to map the visual features into a latent space representation.

Under the laws of Ireland, the UK, and the Isle of Man, there are specific, harmonized exceptions for temporary, transient, or incidental copies. For example, Section 28A of the UK CDPA stipulates that the making of a temporary copy which is transient or incidental, and which forms an essential part of a technological process, does not infringe copyright, provided it has no independent economic significance.

Furthermore, because the output of the VLM is entirely transformative—translating visual art into descriptive metadata—it does not reproduce the author's original expression. If the VLM is utilized by the postgraduate student solely to generate a textual description for educational cataloging or non-commercial research, the act is protected under fair dealing.⁵ Describing an image creates analytical text, not a derivative work that could substitute the commercial market of the original game or comic. Therefore, utilizing a VLM to privately describe media presents a minimal to non-existent copyright infringement risk across all jurisdictions.

Tier 2: Analyzing the Media (Colors, Themes, Mythology, Superpowers)

Action: Extracting conceptual and structural data from the media, such as the mathematical hex codes of color palettes in Marvel comics, the thematic alignment of Greek mythology in Hades, or the structural taxonomy of elemental magic and superpowers in Avatar.

Legal Analysis: This tier relies heavily on the globally recognized Idea-Expression Dichotomy. As established in the analysis of Michael Livingston's work, copyright protects the original expression of an idea, not the underlying idea, concept, fact, or system itself.⁴⁰

When a machine learning algorithm analyzes a screenshot of The Legend of Zelda to extract a mathematical array of colors, it is not copying the artwork; it is abstracting data points.

Similarly, categorizing the superpowers utilized by characters in an X-Men comic or extracting the rule sets governing the elemental bending in Avatar constitutes the abstraction of concepts and systems.

As long as the educational MMO platform does not reproduce the actual artwork, dialogue, character likenesses, or narrative prose of the commercial IP, analyzing and cataloging themes, mythologies, and color palettes falls entirely outside the scope of copyright protection. The Kings' College Galway platform may freely utilize these extracted concepts to build its own original game mechanics and educational frameworks.

Tier 3: Privately Training AI Models on the Media

Action: Ingesting, processing, and aligning the audio cassette tapes and textual transcripts from the 1974 Gael Linn/Linguaphone handbook to train a specialized Irish language acoustic model or natural language processing algorithm.

Legal Analysis: This tier enters the highly regulated domain of Text and Data Mining (TDM). Unlike Tier 1, training an acoustic or language model requires the creation of persistent, localized datasets containing full copies of the copyrighted works, moving beyond the protection of transient copy exceptions.

The legality of this action hinges entirely on the "not-for-profit educational" status of the

initiative and the postgraduate status of the developer. In the UK and the Isle of Man, Section 29A of the CDPA allows researchers who have lawful access to a work to make a copy for the purpose of computational analysis, provided it is for the *sole purpose of research for a non-commercial purpose*.¹⁶ In the Republic of Ireland, Section 53A of the CRRA mirrors this provision precisely.⁹

Because the Kings' College Galway platform operates as a not-for-profit educational charity, the private training of an acoustic model that aligns the 1974 Linguaphone text and audio constitutes legitimate non-commercial TDM. Crucially, the "All Rights Reserved" restriction printed in the 1974 handbook is rendered legally void in this context due to the statutory contract override provisions (CDPA s.29A(5) and the CRRA equivalents).³¹ The copyright holder cannot contractually prohibit non-commercial computational analysis.

However, a strict boundary must be maintained. If the resulting AI model, its weights, or the underlying dataset were to be commercialized or licensed to for-profit entities, the initiative would immediately lose the protection of Section 29A and Section 53A, exposing the developer to significant liability. Remaining strictly non-commercial and private during the training phase guarantees the right to execute this tier.

Tier 4: Self-Hosting the Base Media

Action: Storing the base media in its entirety (e.g., the 1974 Irish Course Handbook PDF and audio files, or high-resolution screenshots of active commercial IP) on private servers hosted by Kings' College Galway for direct use and consumption by enrolled students within the MMO environment.

Legal Analysis: Hosting complete copies of copyrighted works implicates the exclusive reproduction right and the right of communication to the public.

For active commercial IP (such as Marvel comics, Nintendo assets, or the proprietary BitCraft client art), hosting full digital copies without a negotiated license is a blatant infringement.

Reproducing whole comic books or game clients cannot be justified under fair dealing or educational exceptions, as it directly damages the commercial market of the rights holders.⁵

However, the legal calculus shifts significantly for the 1974 Gael Linn Irish Course Handbook when the MMO is structured as a VLE. Under Irish law, Section 53 of the CRRA permits acts done for the purposes of instruction, specifically allowing educational establishments to share copyrighted works via a VLE to enrolled students.³ In the UK and the Isle of Man, Section 32 of the CDPA allows fair dealing for the sole purpose of "illustration for instruction".⁴

To legally self-host the 1974 text in its entirety, the platform must rely on "format shifting" exceptions available to archivists and educational institutions. The digitization of a deteriorating 1974 physical book and analog cassette tapes into a digital format for preservation, and subsequent limited access within a closed, password-protected VLE (accessible only to students enrolled in the GCSE, A-level, or Irish syllabus modules), is supported by these educational exceptions.³ The risk profile remains highly defensible provided the server is not indexed by public search engines and access is rigorously gated to legitimate students.

Tier 5: Distributing or Pirating the Media for a Public Dataset

Action: Releasing the copyrighted media—whether it be the extracted BitCraft client assets, scanned Marvel comics, or the 1974 Linguaphone text and audio—to the open internet as a public, open-source AI training dataset for the wider machine learning community.

Legal Analysis: This tier represents the maximum legal exposure. Distributing copyrighted media to the public without authorization constitutes a direct, unmitigated violation of the right of communication to the public and the right of distribution across the Republic of Ireland, the UK, and the Isle of Man.

If the charity distributes active commercial IP, it engages in pure commercial market substitution. Rights holders of active IP, such as Disney (Marvel) and Nintendo, aggressively litigate against unauthorized dataset inclusion, as it threatens their primary avenues of commercial exploitation. There is no educational, fair dealing, or TDM exception in any of the three jurisdictions that permits the unauthorized, wholesale public distribution of highly commercial copyrighted source material.⁵

Distributing the 1974 Linguaphone text and audio requires a more nuanced, albeit technically illicit, assessment. Because the sound recording copyright endures for seventy years (until the end of 2044)⁴⁴, the unauthorized distribution of this material constitutes infringement.

However, the distribution of this specific legacy material brings into sharp focus the tension between statutory commercial copyright law and the moral imperative of cultural ecology.

Cultural Ecology: Contrasting Tiers against the Orphan Works Framework

The rigid application of commercial copyright law to Tiers 4 and 5—specifically regarding the 1974 Irish Course Handbook—can be starkly contrasted against the policy framework of "Cultural Ecology" outlined in Irish copyright policy literature.³ This framework provides a socio-legal justification for the preservation and dissemination of endangered minority languages, arguing that traditional copyright paradigms fail when applied to non-commercial cultural heritage.

The Teleology of Minority Language Publishing

In dominant, globalized languages, publishing is predominantly a commercial enterprise wherein copyright serves as the primary mechanism to protect financial investments and ensure robust profit margins.³ Consequently, the unauthorized distribution of commercial IP (Marvel, Nintendo) directly undermines the economic teleology of those works.

Conversely, the publication of mid-20th-century Irish language materials, such as the Gael Linn and Linguaphone courses, was driven by an ideological, cultural, and existential imperative to reverse language decline and ensure inter-generational transmission.² The authors, folklorists, and educators who produced these works did so to provide pedagogical tools for future generations; their objective was the absolute maximization of reach and linguistic utility, not the creation of a restricted commercial monopoly.³

Therefore, applying a strict, commercial interpretation of copyright to prevent a postgraduate teacher from computationally analyzing (Tier 3) or self-hosting (Tier 4) an out-of-print 1974

Irish textbook effectively weaponizes intellectual property law against the very culture it ostensibly exists to protect.³ Within the cultural ecology framework championed by linguists like the late Aodán Mac Póilín, copyright transitions from a protective shield into a bureaucratic mechanism of "cultural asphyxiation" if it prevents the unfettered access required to create new, sustainable language communities.³

Deconstructing the False Equivalency of Piracy

A strict legalist approach would automatically classify Tier 5 (distributing the 1974 text in a public dataset) as "piracy." However, the Irish policy framework deconstructs this false equivalency by contrasting digital preservation with historical nineteenth-century American copyright piracy.³

During the nineteenth century, American piracy was characterized by pure commercial motives, massive industrial scale, and direct market substitution (e.g., American publishers printing unauthorized copies of British novels to capture existing market share and maximize revenue without paying royalties).³

The digitization, formatting, and distribution of the 1974 Linguaphone course represents the exact macroeconomic inverse of commercial piracy:

1. **Primary Motive:** The motive is purely educational preservation and linguistic survival, possessing no lucrative commercial drive.³
2. **Economic Impact:** The economic impact is negligible. The text is out-of-print, possessing no current commercial market viability. Because the original publishers and authors are difficult to trace or no longer active in this specific market, the text functions effectively as an "orphan work".³
3. **Nature of the Work:** The work is a specialized, non-digital minority language text, entirely distinct from highly popular, commercially viable international literature.³

Thus, while the Tier 5 public distribution of the 1974 audio technically breaches the exclusive distribution rights under the CRRRA 2000, the CDPA 1988, and the Isle of Man Copyright Act 1991, the actual economic damage is zero. The act of digitization and distribution rescues the work from physical decay and the total obscurity to which the commercial market has relegated it.³

Lexical Fragility, the "Last Speaker," and Moral Usage Licensing

The urgency of integrating materials like the 1974 handbook into the Kings' College Galway MMO is exponentially heightened by the extreme lexical fragility of the Irish language.³ As demonstrated by the work of the late author and broadcaster Manchán Magan, the language possesses a highly specific, landscape-bound phenomenological architecture that cannot be directly translated into English.³

The historical trauma of the "last speaker" phenomenon—where unique regional dialects, vocabularies, and syntactical variations die completely with the passing of individuals (e.g., the death of the last native speakers of Armagh and Tyrone Irish in 1969, and Rathlin Island Irish in 1985)—positions old recordings and out-of-print books as the "only surviving DNA of a

deceased cultural organism".³ To restrict the computational analysis (Tier 3) or self-hosting (Tier 4) of these materials out of a misplaced adherence to commercial copyright principles is to actively participate in the final erasure of those lost words.³

To navigate the technical legal risks of Tier 4 and Tier 5 regarding legacy Irish texts, the cultural ecology policy framework suggests adopting a "Moral Usage License".³ This conceptual licensing mechanism permits the open-source dissemination of materials exclusively for research, cross-community understanding, and education. It explicitly excludes entities that degrade the language or utilize the resources to promote sectarian violence or paramilitary imagery.³

By institutionalizing what Aodán Mac Póilín termed a "willed reality"—refusing to accept the grim demographic facts of language decline—the Kings' College Galway MMO can digitize and format-shift the 1974 text under the legal shields of fair dealing, VLE exceptions, and orphan works risk-management. It operates under a higher moral law of cultural preservation, ensuring that the pedagogical tools necessary for linguistic survival remain freely accessible to the students who depend upon them, without drawing legitimate commercial infringement claims.³

Conclusion

The legal architecture governing the Kings' College Galway educational artificial intelligence platform requires a highly structured, bifurcated strategy based on the specific nature of the media being processed. Operating as a registered teacher and postgraduate student within a not-for-profit charity provides the developer with the strongest possible statutory shields across the Republic of Ireland, the United Kingdom, and the Isle of Man.

For active commercial IP—such as Marvel comics, Nintendo titles, Hades, and the proprietary assets of BitCraft Online—the platform must restrict its activities to Tier 1 (VLM Description) and Tier 2 (Media Analysis). Extracting uncopyrightable facts, themes, and mythologies, and generating descriptive metadata via transient computational copying, is rigorously protected by the idea-expression dichotomy and fair dealing principles.⁵ The platform must categorically avoid Tier 4 and Tier 5 activities for these commercial works, as self-hosting or distributing active IP constitutes severe, indefensible infringement.

Conversely, for legacy educational texts focusing on minority languages, such as the 1974 Gael Linn/Linguaphone course, the platform possesses vast operational latitude. Tier 3 (Private AI Training) is robustly protected under the explicit non-commercial Text and Data Mining exceptions of CDPA Section 29A and CRRRA Section 53A.⁹ Furthermore, statutory contract override provisions render the historical "All Rights Reserved" notices legally unenforceable against these computational acts.³¹ Tier 4 (Self-Hosting) is highly defensible when strictly confined to enrolled students within a gated Virtual Learning Environment, utilizing specific instructional exceptions and format-shifting rights.³ While Tier 5 (Public Distribution) remains a technical infringement of the enduring seventy-year sound recording copyright, applying the "Cultural Ecology" paradigm mitigates practical risk. By classifying the text as a non-commercial orphan work and operating under a Moral Usage License, the charity can morally, culturally, and educationally justify the digital resurrection of the material, ensuring the survival of the minority

language for future generations.³

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